Universidad de Alcalá

COURSE GUIDE

INTERNATIONAL FISCAL SYSTEM

Transversal
Universidad de Alcalá

Academic Year 2026/2027

First Year – First Term

Course guide

Course name:	**International Fiscal System**
Code:	**100197**
Course available for:	**Any Grade**
Department	**Economics and Business Management**
Course type:	**Optional and transversal**
ECTS credits:	**6**
Year and term:	**First year- First Term**
Professors:	**MARÍA CRESPO GARRIDO**
Teaching Timetable:	**TBC**
Language of Instructions:	**English**

1. INTRODUCTION

This compulsory course studies the effects of taxes on international business. It is an important question, since the level of taxation can have hugely beneficial or harmful effects on any and all business activity. This course focuses on the knowledge required to:

1. Identify and recognize the limiting effects of taxation on international business from the viewpoint of economic and law forces.

2. Analyze income tax on people and legal entities and its effects on economic forces in a global economy.

3. Describe and analyze common configurations of fiscal systems, from the position of the state, showing the theoretical limits of taxes, strategies for better tax enforcement, and policies that generate stability.

4. Learn about the model agreement enacted by the OECD in order to avoid double taxation (such as the equalization of levies) and the typology of the different incomes and profit streams generated in international business.

5. Study the fiscal rules governing non-residents as a reference point for learning about the effects of taxes on international transactions.

6. Analyze different forms of international fiscal planning.

Regarding the SDGs



Within the 10 principles of the Global Compact and the Sustainable Development Goals (SDG), which causes a positive impact. This subject promotes objective 4 of improving quality education, objective 10 of reducing inequalities and objective 11 of sustainable cities and communications.

2. SKILLS

General Skills:

The main aim of the course is to develop the students' capacity to understand the effects the taxes of a government have on international trade.

1. Poseer y comprender conocimiento de las principales instituciones públicas y privadas en su génesis y en su conjunto así como los conocimientos básicos en el ordenamiento jurídico con el apoyo de libros de textos avanzados y diversas fuentes complementarias y emergentes:
   1.1. Describir los aspectos básicos de las diferentes ramas del Derecho
   1.2. Leer e interpretar textos jurídicos
   1.3. Identificar las diferentes fuentes del Derecho

1.4. Comprender las distintas formas de creación del Derecho tanto en el pasado como en la realidad actual y en las perspectivas emergentes.

1.5. Analizar y sintetizar los diferentes fenómenos jurídicos.

1.6. Completar la formación específica con un bagaje cultural más amplio e integral, aportado por conocimientos de formación humanísticas y de cienciassociales (historia, filosofía, economía, contabilidad, etc.), así como otros conocimientos instrumentales (idiomas, informática o expresión oral o escrita).

2. Aplicar los conocimientos adquiridos a situaciones profesionales y ser capaz de transferir los aprendizajes más allá de lo enseñado

2.1. Utilizar correctamente los conocimientos, principios y destrezas adquiridas en y para la resolución de su práctica profesional.

2.2. Ser creativo en la aplicación de los conocimientos a entornos y situaciones complejas que comienza a tener contacto a través del prácticum y que permiten familiarizarse con situaciones jurídicas en empresas, bufetes, instituciones públicas, administraciones y demás organismos del ámbito jurídico.

3. Razonar con argumentaciones jurídicas y emitir juicios fundados en la interpretación de datos relevantes y en entornos complejos:

3.1. Participar en debates y actividades que exijan argumentar, apelar a conocimientos normativos, sentencias, dictámenes, informes para buscar el mejor argumento.

3.2. Identificar con eficacia las fuentes legales, jurisprudenciales y doctrinales necesarias para preparar sus argumentaciones. Asumir un compromiso ético en su accionar y en su razonamiento crítico.

4. Expresar con fluidez, claridad y corrección las ideas, informaciones, problemas, soluciones, pensamientos, contenido teórico y práctico a través de diferentes medios y herramientas:

4.1. Desarrollar una comunicación oral fluida, tanto en el trato más personalizado como ante grandes auditorios.

4.2. Redactar textos jurídicos de modo correcto, fundamentado y con estilo adecuado a las diferentes circunstancias.

4.3. Valorar la importancia del Derecho en la regulación de las relaciones sociales y de los procesos de toda acción comunicativa.

4.4. Tener habilidades sociales, comunicativas e interpersonales básicas para su futuro ejercicio profesional.

5. Desarrollar la capacidad de aprendizaje continuo y especialmente para emprender estudios de postgrado con autonomía y sostenibilidad:

5.1. Desarrollar la capacidad de un aprendizaje autodirigido y autónomo que permita introducir al graduado en el mundo profesional con una actitud de indagación permanente.

5.2. Diseñar y desarrollar proyectos de acuerdo a las áreas de interés siguiendo los pasos y secuencias para su propuesta en el trabajo de fin de Grado.

5.3. Identificar y acudir a fuentes de información relevantes tanto jurisprudenciales, doctrinales como legales que faciliten la localización, selección y organizaciónde información en el ámbito de la especialidad jurídica y de las ciencias sociales.

5.4. Introducir al graduado en los procedimientos y metodologías de investigación que podrá desarrollar y profundizar en estudios superiores.

Specific Skills:

SS1. Knowledge of the procedures required to evaluate fiscal burdens, as well as analysis of alternatives that allow comparisons to be made.
SS2. Knowledge of legislation relating to "non-residents" in Spain as a reference point for practical analysis of the fiscal burden borne of taxable transactions in Spain.
SS3. Study of international treaties regarding double taxation which guarantee neu-trality in the enacting of taxation.
SS4. Analysis of the different forms of carrying out the same transaction in different fiscal jurisdictions, comparing the fiscal burden of each method.

The subject incorporates the SKILLS: soft skills, digital skills and skills related to diversity, as outlined in the Department's Master Plan, which is part of the University of Alcalá's Strategic Plan 2036.

3. CONTENT

The course is separated into nine teaching units, with each unit subdivided into classes which reveal the key subject knowledge piece by piece.

UNIT ONE. THE SPANISH FISCAL SYSTEM: AN OVERVIEW

UNIT TWO THE INTERNATIONAL FISCAL SYSTEM IN THE OECD

COUNTRIES

UNIT THREE: ACTION PLAN ON BASE EROSION AND PROFIT SHIFTING

UNIT FOUR: NEUTRALISE THE EFFECTS OF HYBRID MISMATCH ARRANGEMENTS

UNIT FIVE: LIMIT BASE EROSION VIA INTEREST DEDUCTIONS AND OTHER FINANCIAL PAYMENTS

UNIT SIX: COUNTER HARMFUL TAX PRACTICES MORE EFFECTIVELY, TAKING INTO ACCOUNT TRANSPARENCY AND SUBSTANCE

UNIT SEVEN: PREVENT TREATY ABUSE

UNIT EIGHT: REQUIRE TAXPAYERS TO DISCLOSE THEIR AGGRESSIVE TAX PLANNING ARRANGEMENTS

UNIT NINE: DEVELOP A MULTILATERAL INSTRUMENT

Programation

First class	▪ Developed over two weeks	The professor will develop the theoretical and practical facets of the material
Lesson 2ª	▪ Developed over one week	• The professor will develop the theoretical and practical facets of the material

Lesson 3ª	▪ Developed over one week	• The professor will develop the theoretical and practical facets of the material
Lesson 4ª	▪ Developed over one week	• The professor will de-velop the theoretical and practical facets of the material

Lesson 5ª	▪ Developed over one week	• The professor will develop the theoretical and practical facets of the material
Lesson 6ª	• Developed over one week	• The professor will develop the theoretical and practical facets of the material
Lesson 7ª	• Developed over one week	• The professor will develop the theoretical and practical facets of the material
Lesson 8ª	• Developed over one week	• The professor will develop the theoretical and practical facets of the material
Lesson 9ª	• Developed over one week	• The professor will develop the theoretical and practical facets of the material

Schedule (Optional)

Week/sesion	Content
1st	First class Theory and Practical
2nd	First class Theory and Practical (cont.)
3rd	Second class Theory and Practical
4th	Third class Theory and Practical
5th	Fourth class Theory and Practical
6th	Fourth class Theory and Practical (cont.)
7th	Fifth class Theory and Practical

8th	Sixth class Theory and Practical
9th	Seventh class Practice and Practical
10th	Eighth class Theory and Practical
11th	Ninth class Practice and Practical
12th	Ninth class Practice and Practical (cont.)
13th	Tenth class Practice and Practical
14th	Tenth class Practice and Practical (cont.)

4. METHODOLOGIES FOR LEARNING AND TEACHING-EDUCATIONAL ACTIVITIES

4.1. Distribution of credits

Face-to-face tutorials 48 h	Theoretical classes:23h · Practical classes: 23h · Tests: 2h
Self-study 102 h	Independent work · Self study · Preparation for tests and exams · Completion of exercises · Attending tutorials
Total Hours	150

4.2. Methodological strategies, materials and educational resources

Theoretical and practical sessions (attendance credits)	Theory classes in large groups based on the methodology of the master class. · Practical and theory classes, based on a methodology of moving from the course content to real-world examples, both past and present. · Analysis and debate of practical examples.

	Development of the practical elements on each topic of the
Individual and group work (credits unrelated to attendance)	▪ Individual and group work, fact-finding, reading articles and studying cases that will help students to correctly understand the theoretical and practical concepts acquired in class.
Final evaluation	▪Continuos evaluation of the course for the purpose of continuous evaluation)

The teaching method utilizes a combination of theoretical classes regarding the applicable legal framework as well as practical classes. There are also face-to-face tutorials, the possibility of online tutorials and, where appropriate, assisted work projects.

Teaching will begin by focusing on the defining aspects of the legal framework of the topics contained within the course. Once these regulations are understood, students will go on to learn about real-world cases, which will require analysis, evaluation and clarification through the application of the relevant theories.

Theory classes

The theory classes explain the fundamental aspects of each topic. In these classes, the professor will explain the basic concepts of the applicable legal taxation frame-work. The classes are given in the form of a lecture, with assistance from computational or audiovisual material, or material of a similar nature.

The classes aim to provide knowledge related to the subject through a cumulative process, beginning with the simple topics and finishing with more complex ideas.

Practical classes

The material on this course is applied daily to millions of administrative transactions, and the content will be centered around solving real-world problems. This approach allows the students to attain a deep understanding of how taxes affect different entities.

As well as this general class outline, it is possible to dedicate all or part of a class to:
· answering questions or queries related to different exercises: As long as this is done with discretion and at the request of the students, these questions can be related to theoretical concepts, examples, or outcomes or hypotheses that have been studied and evaluated during the course.
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· Practical workshops: In these classes the students will investigate examples and conventional hypotheses, the aim being that the students propose a solution that the professor will later examine and exhibit during the lectures.

The practical classes are structured to encourage the students to take the initiative and resolve the cases presented to them, basing their conclusions on the theoretical explanations seen in class or knowledge accumulated from independent study. Thus, the practical classes aim to refine their analytical abilities and generate an exchange of opinions, giving them a firmer grasp on the fundamental concepts of the subject. The time spent on each exercise will depend on its complexity.

Tutorials
The face-to-face tutorials are in place to provide individual assistance to students and are always available to provide support: The tutorials are complemented to lectures and practical classes, not a substitute. Fundamentally, they aim to provide timely help to students who are having trouble understanding any of the material studied. The tutorials provide individual attention at a time to be decided by the professor.

Online Tutorials
There is also the possibility of online tutorials, which will take place through the web page or via email with the professor. The student will be able to have any doubts, questions or queries answered individually and immediately, assisting the learning process.

Assisted work projects
These are a way of putting the student's acquired theoretical knowledge into practice. These work projects can be undertaken by individual students or in a group, and will be presented and discussed in the practical classes.

"We will collaborate with the CRAI-Library professionals so that the students carry out an activity that develops the informational competences in the use and management of the information"

5. EVALUATION: Procedures and criteria of evaluation and qualification

The normal process of evaluation is continuous evaluation of the student. Under the current rules, if the student does not participate in the process mentioned below, he/she will be recorded as "absent" from the regular program of assessment. STUDENTS WHO WISH TO BE EXEMPT FROM CONTINUOUS EVALUATION must contact the Head of School (Director de la Escuela) or the Faculty Dean (Decano de la Facultad) in the first two weeks of teaching, ex-plaining their reasons for desiring exemption from this process.

If this exemption is not requested, the student will be evaluated under the usual, continuous process. It will not be possible to change the form of evaluation once two weeks of teaching have passed.

Those students who are exempt from continuous evaluation will have to sit a final exam on the officially designated dates, which will examine their knowledge of the material studied in the course.

A. System of Continuous Evaluation

This system requires an 80% attendance rate in all theoretical and practical classes.
The students' knowledge will be evaluated thus:
- Different theoretical and practical works directed to evaluate the knowledge of the students, which will evaluate the knowledge of the legal and economic framework of taxes. Students are expected to demonstrate their knowledge by making different works.
These works form 80% of the final grade. These works are based on the material studied in the various units, and students who obtain an average grade of 5 or higher.
Students who achieve a grade of 5 or higher will be considered to have attained enough knowledge to pass the course.

Criteria and results of evaluation

These are the criteria of evaluation:

- Knowledge of the subject.
- Comprehension and communication of knowledge acquired.
- Ability to apply knowledge to real-world situations.
- Ability to interpret economic variables from a taxation viewpoint.

The main results of the studies will be having a look of the mail appointments of international tax system.

"During the development of the evaluation tests, the guidelines set out in the Regulations establishing the Rules of Coexistence of the University of Alcalá must be followed, as well as the possible implications of irregularities committed during these tests, including the consequences for committing academic fraud according to the Disciplinary Regulations of the Student Body of the University of Alcalá".

GENDER EQUALITY

In coherence with the assumed value of gender equality, all the names that in this Guide refer to unipersonal governing bodies, representative bodies or members of the university community and are made in the masculine gender, when they have not been replaced by generic terms, shall be understood to be made indistinctly in the feminine or masculine gender, depending on the sex of the person who holds them.

The teaching-learning methodology and the assessment process will be adapted as needed, in accordance with the guidelines of the Diversity Support Unit, to implement curricular adaptations for students with specific needs.

6. BIBLIOGRAPHY

Useful Websites

- Agencia Estatal de la Administración Tributaria http://www.aeat.es Tax revenue annual report
- Instituto de Estudios Fiscales http://www.ief.es
- Registro de Economistas Asesores Fiscales http://www.reaf.es

Fair and simple taxation:

https://ec.europa.eu/taxation_customs/general-information-taxation/eu-tax-policy- strategy/package-fair-and-simple-taxation_en?pk_campaign=fairtaxation_phase1&pk_source=twitter&pk_medium=social

Regressive of the VAT:

https://dx.doi.org/10.1787/b76ced82-en

The World Bank Group:

https://www.worldbank.org/en/programs/business-enabling-environment

Globalizing economies: Challenges to tax systems:
www.kpmg.com.pk

Books:

- **Andrés Aucejo, E (2021):** ***Global tax governance. Taxation on digital economy, transfer pricing and litigation in tax matters policies for global sustainability ongoing.*** **Aranzadi. Pamplona**
- **Serrano Antón, F (edición digital):** ***Tax compliance y planificación fiscal internacional en la era Post.*** **Aranzadi.**